

The Maharashtra Commissioners of Divisions Act, 1958

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State of Maharashtra - Act

The Maharashtra Commissioners of Divisions Act, 1958

MAHARASHTRA

India

The Maharashtra Commissioners of Divisions Act, 1958

Act 8 of 1958

Published on 10 January 1958

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The Maharashtra Commissioners of Divisions Act, 1958

Act

No. 8 of 1958

[10th January, 1958]

For Statement of Objects and Reasons, see Bombay Government Gazette, 1957, Part 5, Page 281.

An Act to provide for the offices of Commissioners of divisions in the State of Bombay, for prescribing their powers and duties and to make provisions-consequent on the provision for such offices and for certain other matters.

Whereas it is expedient to provide for the officers of Commissioners of divisions in the State of Bombay, for prescribing their powers and duties and to make provisions for matters consequent on the provision for such offices and for certain other matters; It is hereby enacted in the Eighth Year of the Republic of India as follows:

1.

Short title, extent and commencement.

(1)

This Act may be called [the Maharashtra Commissioners of Divisions Act]

[This short title was substituted for the short title 'the Bombay Commissioners of Divisions Act, 1957' by Maharashtra 24 of 2012, Schedule entry No. 65, (w.r.e.f. 1-5-1960).]

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(2)

It extends to the whole of the State of Bombay.

(3)

It shall come into force on such date as the State Government may, by notification in the Official Gazette appoint.

2.

Definitions.

- In this Act, unless the context requires otherwise,-

(a)

"Commissioner" shall mean the Commissioner of a division appointed under the law relating to land revenue as amended by the Schedule to this Act;

(b)

"Director of Local Authorities" means the Officer appointed for the time being, by the State Government to be the Director of Local Authorities;

(c)

"division" means the territories formed into a division under the Bombay Land Revenue Code, 1879, or under that Code in its application to the Kutch and Saurashtra areas of the State of Bombay, or under the Madhya Pradesh Land Revenue Code, 1954, or under the Hyderabad Land Revenue Act;

(d)

"Divisional Officer" means an officer appointed as such, immediately before the commencement of this Act, under the provisions of-

(i)

section 5 of the Bombay Land Revenue Code, 1879 or that section of the Code in its application to the Kutch area of the State of Bombay.

(ii)

section 5 of the said Code in its application to the Saurashtra area of the State of Bombay and read with the Government Notification in the Legal Department No. 25398/B, dated 1st November, 1956 issued under section 122 of the States Reorganisation Act, 1956,

(iii)

section 9-A of the Madhya Pradesh Land Revenue Code, 1954, read with Government Notification in the Revenue Department No. RVA. 1556-R, dated 1st November 1956; or

(iv)

section 4 of the Hyderabad Land Revenue Act;

(e)

"existing law" means any enactment of Legislature or other competent, authority in relation to matters specified in Lists II and III in the Seventh Schedule to the Constitution in force in any part of the State immediately before the commencement of this Act and includes any rule, bye-law, regulation, order notification, scheme, form or other instrument having the force of law made, prescribed or issued under any such enactment.

(f)

"Schedule" means the Schedule appended to this Act.

3.

Amendment to enactments power of State Government to confer powers and impose duties on commissioners under any law.

(1)

For the purposes of constituting offices of Commissioners of divisions and conferring powers and imposing duties on Commissioners and for certain other purposes, the enactments specified in column 1 of the Schedule, to this Act shall

be amended in the manner and to the extent specified in column 2 thereof.

(2)

The Commissioner of a division, appointed under the law relating to land revenue as amended by the said Schedule, shall exercise the powers and discharge the duties conferred and imposed on the Commissioner by any law for the time being in force, including the enactments referred to in sub-section (X) as amended by the said Schedule.

(3)

The State Government may by notification in the Official Gazette amend or delete any entry in the Schedule for the purpose of imposing any conditions or restrictions on the exercise of powers and discharge of duties conferred or imposed on the Commissioner or withdrawing them, as the case may be, and the Schedule shall be amended accordingly.

(4)

The State Government may confer and impose on the Commissioner powers and duties under any other enactment for the time being in force and for that purpose may, by a notification in the Official Gazette, add to or specify in the Schedule the necessary adaptations and modifications in that enactment by way of amendment; and thereupon-

(a)

every such enactment shall accordingly be amended and have effect subject to the adaptations and modifications so made, and

(b)

the Schedule to this, Act shall be deemed to be amended by the inclusion therein of the said provision for amending the enactment.

(5)

The State Government may at any time in like manner cancel a notification under sub-section (4) and thereupon the relevant enactment shall stand unamended by the cancelled notification and the Schedule shall be altered accordingly.

4.

Repeal of Bombay XXVIII of 1950 and C.P. and Berar Act LXI of 1948.

(1)

On the commencement of this Act, the Bombay Commissioners, (Abolition of Office) Act, 1950 and the Central Provisions and Berar Commissioners (Construction of References) Act, 1948, shall be repealed.

(2)

The repeal referred to in sub-section (1) shall not affect-

(a)

any legal proceedings to which the State Government or any officer or authority (other than the Divisional Officer or Director of Local Authorities) is a party; and any such proceedings shall subject to the provisions of any law for the time being in force, be continued and disposed of as if this Act had not been passed;

(b)

any powers or duties, other than those conferred or imposed by or under the provisions of this Act on the Commissioner, which immediately before the commencement of this Act may have been conferred or imposed by the State Government or any officer or authority other than a Divisional Officer or a Director of Local Authorities or which were exercisable or discharged by the state Government; or

(c)

any appointment, notification, order, such rule, regulation, bye-law, form, instrument or document made, prescribed, issued or executed or deemed to have been made, prescribed, issued or executed by the State Government or by any officer or authority under or with reference to the provisions of any existing law and any such appointment, notification, order, rule, regulation, bye-law, form, instrument or document shall be valid and continue in operation unless and until it is superseded or modified by a competent authority.

5.

Pending legal proceedings.

- If at the commencement of this Act, any legal proceedings are pending to which a Divisional Officer or Director of Local Authorities is a party, the Commissioner shall be substituted for the Divisional Officer or the Director of Local Authorities in the said proceedings.

6.

Construction of references to Divisional Officers or Directors of Local Authorities in existing law.

- Subject to the provisions made in the Schedule, all existing laws shall, unless the context otherwise requires, be construed as if references therein to the Divisional Officer, or as the case may be, to the Director of Local Authorities were references to the Commissioner.

7.

Construction of references in instruments or documents.

- All instruments or documents executed or made before the commencement of this Act under or with reference to any existing law or any enactment specified in the Schedule shall unless the context otherwise requires, be construed as if references therein to the Divisional Officer or the Director of Local Authorities were references to the Commissioner.

8.

Pending proceedings before the Divisional Officer or Director of Local Authorities, etc.

- All proceedings including proceedings by way of appeals, revision or review pending under any existing law before the State Government or a Divisional Officer or Director of Local Authorities or any other officer or authority immediately before the commencement of this Act shall, where disposal of the proceedings falls within the purview of the powers and duties of the Commissioner, be transferred to the Commissioner for disposal according to law.

Schedule

1

2

[The Bombay Land Revenue Code, 1879 (Bom. V of 1879).]

[Now see the Maharashtra Land Revenue Code, 1966 (Maharashtra XLI of 1966)]

1. For sections 4, 5, 6 and 6-A, the

following shall be substituted, namely :-

Chief controlling authority in revenue matters.

"4. The

chief controlling authority in all matters connected with the land revenue shall vest in the Commissioner, subject to the State Government.

Formation of divisions.

5. The State

Government may, by notification in the Official Gazette, specify the territories, being territories to which this Act extends, which shall form a division and by a like notification alter the limits of the division so formed.

Commissioner for each division.

6. On the

commencement of the Bombay Commissioners of Divisions Act, 1957,

there shall be a Commissioner for each division: Provided that

nothing in this section shall preclude the appointment of the

same officer as Commissioner for two or more divisions.

Bom. VIII of 1958.

Appointment of Commissioners; their powers and duties.

6A.(1) The

Commissioners of divisions shall be appointed by the State Government.

(2) The

Commissioners shall exercise the powers and discharge the duties

conferred and imposed on a Commissioner under this Act or under

any law for the time being in force, and so far as is consistent

therewith all such other powers or duties of appeal,

superintendence and control within their respective divisions,

and over the officers subordinate to them as may from time to

time be prescribed by the State Government.

(3) The

Commissioners shall also, subject to the control and the general or special orders of the State Government, exercise such powers and discharge such duties, as the State Government may confer or impose on them for the purpose only of carrying out the provisions of any law for the time being in force, and so far as is consistent therewith.

Additional Commissioners.

6B.(1) The

State Government may appoint in a division an Additional Commissioner as it may deem expedient. The Additional Commissioner shall exercise such powers and discharge such duties of the Commissioner in his division under the provisions of this Act or any law for the time being in force, as the State Government may, by notification in the Official Gazette, specify in that behalf.

(2) An Additional

Commissioner appointed under sub-section (1) shall not be subordinate to the Commissioner except in such matters as the State Government may, by general or special order, specify in this behalf.

Assistant Commissioners.

6C. The State

Government may also appoint so many Assistant Commissioners as may be expedient to assist the Commissioner. The Assistant Commissioners shall be subordinate to the Commissioner, and shall exercise such powers and discharge such duties of that Commissioner in a division or part thereof under this Act or under any law for the time being in force as the Commissioner, with the previous permission of the State Government, may direct."

2. In section 7, after the words "Each division" the words "under the control of the Commissioner" shall be inserted.

3. In section 8, after the words "Collector add who", the words "shall be subordinate to the Commissioner of his division and" shall be inserted.

4. In section 8A, after the words "deem fit", the words "The Additional Collector shall be subordinate to the Commissioner of his division" shall be inserted.

5. In section 13, after the words "State Government", where they occur for the third time, the words "and of the Commissioner" shall be inserted.

6. In section 14, after the words "be passed" the words "by the Commissioner, or" shall be inserted.

7. In section 17, after, the words "general orders of the State Government", the words "and of the Commissioner" shall be inserted.

8. In section 37 A, for the words "State Government", except in the expression "which is the property of the State Government", the word "Commissioner" shall be substituted.

9. In sections 39 and 159, for the words "State Government", and in section 82, for the words "State Government" where they occur for the second time, the word "Commissioner" shall be substituted.

10. In section 152, -

(a) for the words

"State Government", the word "Commissioner" shall be substituted; and

(b) after the words

"such notices, and" the words "with the sanction of the State Government" shall be inserted.

11. In section 183, after the words

"sanctioned by" the words "the Commissioner under the orders of" shall be inserted.

12. In section 204, after the words

"order passed" the words "by a Commissioner or" shall be inserted.

[The Bombay Land Revenue Code, 1879 (Bom. V of 1879), as extended to the Kutch area of the State of Bombay under the Part C States (Laws) Act, 1950 (XXX of 1950).]

[Now see the Maharashtra Land Revenue Code, 1966 (Maharashtra XLI of 1966)]

1. For sections 4 and 5, the following shall be substituted, namely:-

Chief controlling authority in revenue matters

"4. The

Chief controlling authority in all matters connected with the land revenue shall vest in the Commissioner, subject to the State Government.

Formation of division.

5. The State

Government may, by notification in the Official Gazette, specify the territories being territories to which this Act extends which shall form a division and may by like notification alter the limits of the division so formed.

Commissioner for each division.

6. On the

commencement of the Bombay Commissioners of Divisions Act, 1957, there shall be a Commissioner for each division: Provided that nothing in this section shall preclude the appointment of the same officer as Commissioner for two or more divisions.

Bom. VIII of 1958.

Appointment of Commissioners; their powers and duties.

6A. (1) The

Commissioners of divisions shall be appointed by the State Government

(2) The

Commissioners shall exercise the powers and discharge the duties conferred and imposed on a Commissioner under this Act or under any law for the time being in force and so far as is consistent therewith, all such other powers or duties of appeal, superintendence and control within their respective divisions, and over the officers subordinate to them as may, from time to time, be prescribed by the State Government.

(3) The

Commissioners shall also, subject to the control and the general or special orders of the State Government, exercise such powers and discharge such duties, as the State Government may confer or impose on them for the purpose only of carrying out the provisions of any law for the time being in force, and so far as is consistent therewith.

Additional Commissioners.

6B.(1) The

State Government may appoint in a division an Additional Commissioner as it may deem expedient. The Additional Commissioner shall exercise such powers and discharge such duties of the Commissioner in his division under the provisions of this Act, or any law for the time being in force, as the State Government may, by notification in the Official Gazette, specify in that behalf.

(2) An additional

Commissioner appointed under sub-section (1) shall not be subordinate to the Commissioner except in such matters as the State Government may, by general or special order, specify in this behalf.

Assistant Commissioners.

6C. The State

Government may also appoint so many Assistant Commissioners as may be expedient to assist the Commissioner. The Assistant Commissioners shall be subordinate to the Commissioner and shall exercise such powers and discharge such duties of the Commissioner in a division or part thereof under this Act or under any law for the time being in force as the Commissioner, with the previous permission of the State Government, may direct."

2. In section 8, for the words "State Government", where they occur for the second time, the words "Commissioner of his division" shall be substituted.

3. In section 13, after the words "State Government", where they occur for the third time, the words "and of the Commissioner" shall be inserted.

4. In section 14, for the words "State Government", the word "Commissioner" shall be substituted.

5. In section 17, after the words "general orders of the State Government", the words "and of the Commissioner" shall be inserted.

6. In section 37 A, for the words "State

Government", except in the expression "which is the property of the State Government", the word "Commissioner" shall be substituted.

7. In sections 39 and 159, for the words "State Government", the word "Commissioner" shall be substituted.

8. In section 49, for the words "State Government", the word "Collector" shall be substituted.

9. In section 152, -

(a) for the words

"State Government", the word "Commissioner" shall be substituted;

(b) after the words

"issue of such notices, and" the words "with the sanction of the State Government" shall be inserted.

10. In section 154, after the words

"officers as the" words "Collector under the orders of the" shall be inserted.

11. In section 183, after the words

"sanctioned by" the words "the Commissioner under the orders of" shall be inserted.

12. In section 204, for the word

"Collector" wherever it occurs, the word "Commissioner" shall be substituted.

[The Bombay Land Revenue Code, 1879 (Bom. V of 1879), as adapted and applied to the Saurashtra area of the State of Bombay by the State of Saurashtra (Application of Central and Bombay Acts), Ordinance, 1948 (Sau. Ord. XXV of 1948).]

[Now see the Maharashtra Land Revenue Code, 1966 (Maharashtra XLI of 1966)]

Chief controlling authority in revenue matters.

1. For sections 4, 5 and 6, the following shall be substituted, namely :-

"4. The

Chief controlling authority in all matters connected with the land revenue shall vest in the Commissioner, subject to the State Government.

Formation of division

5. The State

Government may by notification in the Official Gazette, specify the territories being territories to which this Act extends which shall form a division and may by a like notification alter the limits of the division so formed.

Commissioner for each division.

6. On the

commencement of the Bombay Commissioners of Divisions Act, 1957, there shall be a Commissioner for each division: Provided that nothing in this section shall preclude the appointment of the same officer as Commissioner for two or more divisions.

Bom. VIII of 1958.

Appointment of Commissioners; their powers and duties.

6A.(1) The

Commissioners of divisions shall be appointed by the State Government.

(2) The Commissioner

shall exercise the powers and discharge the duties conferred and imposed on a Commissioner under this Act or under any law for the time being in force and so far as inconsistent therewith all such other powers or duties of appeal, superintendence and control within their respective divisions, and over the officers subordinate to them as may, from time to time, be prescribed by the State Government.

(3) The

Commissioners shall also, subject to the control and the general or special orders of the State Government, exercise such powers and discharge such duties as the State Government may confer or impose on them for the purpose only of carrying out the provisions of any law for the time being in force, and so far as is consistent therewith.

Additional Commissioners.

6B.(1) The

State Government may appoint in a division an Additional Commissioner as it may deem expedient. The Additional Commissioners shall exercise such powers and discharge such duties of the Commissioner in his division under the provisions of this Act or any law for the time being in force, as the State Government may, by notification in the Official Gazette, specify in that behalf.

(2) An additional

Commissioner appointed under sub-section (1) shall not be subordinate to the Commissioner except in such matters as the State Government may, by general or special order, specify in this behalf.

Assistant Commissioners.

6C. The State

Government may also appoint so many Assistant Commissioners as may be expedient to assist the Commissioner. The Assistant Commissioners shall be subordinate to the Commissioner, and shall exercise such powers and discharge such duties of the Commissioner in a division or part thereof under this Act or under any law for the time being in force as the Commissioner, with the previous permission of the State Government, may direct."

2. In section 8, after the word

"Commissioner", the words "of this division" shall be inserted.

3. In section 37 A, for the words

"Government of Bombay", except in the expression "which is the property of the State of Bombay", the word "Commissioner" shall be substituted.

4. In section 49, for the word

"Commissioner" the word "Collector" shall be

substituted.

5. In section 154, for the word

"Commissioner" the word "Collector" shall be substituted.

6. In section 203, sub-section (2) shall be deleted.

[The Hyderabad Land Revenue Act (Hyd. Act VIII of 1317F)]

[Now see the Maharashtra Land Revenue Code, 1966 (Maharashtra XLI of 1966)]

1. Throughout the Act, for the words "Divisional Officer" and "Divisional Officers", the words "Commissioner" and "Commissioners" shall respectively, be substituted.

2. For sections 3 and 4, the following shall be substituted, namely :-

Chief controlling authority in revenue matters

3. The Chief controlling authority in all matters connected with the land revenue shall vest in the Commissioner, subject to the State Government. Formation of divisions.

4. The State Government may, by notification in the Official Gazette, constitute the whole of the Hyderabad area of the State of Bombay or any part thereof into a division and may by a like notification alter the limits of the division so constituted.

Commissioner for each division.

4A. On the commencement of the Bombay Commissioners of Divisions Act, 1957, there shall be a Commissioner for each division: Provided that nothing in this section shall preclude the appointment of the same officer as Commissioner for two or more divisions.

Bom. VIII of 1958.

Appointment of Commissioners; their powers and duties.

4B. (1) The Commissioners of divisions shall be appointed by the State Government.

(2) The Commissioners shall exercise the powers and discharge the duties conferred and imposed on a Commissioner under this Act or under any law for the time being in force and so far as is consistent therewith all such other powers or duties of appeal, superintendence and control within their respective divisions and over the officers subordinate to them as may, from time to time, be prescribed by the State Government.

(3) The Commissioners shall also, subject to the control and the general or special orders of the State Government, exercise such powers and discharge such duties, as the State Government may confer or impose on them for the purpose only of carrying out the provisions of any law for the time being in force, and so far as is consistent therewith.

Additional Commissioners.

4C. (1) The State Government may appoint in a division, an Additional Commissioner as it may deem expedient. The Additional Commissioner shall exercise such powers

and discharge such duties of the Commissioner in his division under the provisions of this Act or any law for the time being in force as the State Government may, by notification in the Official Gazette, specify in that behalf.

(2) An additional Commissioner appointed under sub-section (1) shall not be subordinate to the Commissioner except in such matters as the State Government may, by general or special order, specify in this behalf.

Assistant Commissioners.

4D. The State Government may also appoint so many Assistant Commissioners as may be expedient to assist the Commissioner. The Assistant Commissioners shall be subordinate to the Commissioner and shall exercise such powers and discharge such duties of the Commissioner in a division or part thereof under this Act or under any law for the time being in force as the Commissioner with the previous permission of the State Government may direct."

3. In section 6, the following shall be added at the end, namely :-

"The Additional Collector shall be subordinate to the Commissioner but shall not be subordinate to the Collector except in respect of such matters as the State Government may, by general or special order, specify in this behalf."

4. In section 7, the words "or Divisional Officers" shall be deleted.

5. In section 61, in sub-section (2), for the word "Government";, the word "Commissioner" shall be substituted.

6. In section 123, for the words "The Government" the words "The Commissioner, with the sanction of the State Government" shall be substituted.

7. In section 158, for sub-sections (2) and (2A) the following shall be substituted, namely:-

"(2) Subject to the provisions in the Bombay Revenue Tribunal Act, 1939, an appeal shall lie to the State Government from any decision or order passed by a Commissioner or Nazim of Survey Settlement or of Land Records except in the case of any decision or order passed by such officer on second or third appeal".

Bom. XII of 1939.

[The Madhya Pradesh Land Revenue Code, 1954 (M.P. Act II of 1955).]

[Now see the Maharashtra Land Revenue Code, 1966 (Maharashtra XLI of 1966)]

1. Throughout the Act, for the words "Deputy Commissioner" and "Deputy Commissioners" the words "Collector" and "Collectors" shall, respectively, be substituted.

2. In section 2, in sub-section (1), clause (4) shall be deleted.

3. Section 9A shall be deleted.

4. In section 10,-

(a) before the words

"Settlement Commissioner" the word "Commissioner;"

shall be inserted ;

(b) for the words

and brackets "Assistant Commissioners (of the first and second grades)" the words "Assistant Collectors; Deputy Collectors;" shall be substituted.

5. After section 11, the following shall be

inserted, namely :-

Chief controlling authority in revenue matters.

11A.The Chief controlling authority in

all matters connected with the land revenue shall vest in the Commissioner, subject to the State Government.

Formation of divisions.

11B.The State Government may, by

notification in the Official Gazette, constitute the whole of the Vidarbha region of the State of Bombay or any part thereof into a division and may, by a like notification, alter the limits of the division so constituted.

Commissioner for each division.

11C.On the commencement of the Bombay

Commissioners of Divisions Act, 1957, there shall be. a

Commissioner for each division: Provided that nothing in this section shall preclude the appointment of the same officer as Commissioner for two or more divisions.

Bom. VIII of 1958.

Appointment of Commissioners; their powers, and duties.

11D.(1) The Commissioners of divisions

shall be appointed by the State Government.

(2) The Commissioners shall exercise the powers

and discharge the duties conferred and imposed on a Commissioner under this Act or under any law for the time being in force and so far as is consistent therewith, all such other powers or duties of appeal, superintendence and control within their respective divisions, and over the officers subordinate to them as may, from time to time, be prescribed by the State Government.

(3) The Commissioners shall also, subject to the

control and the general or special orders of the State Government, exercise such powers and discharge such duties as the State Government may confer or impose on them for the purpose only of carrying out the provisions of any law for the time being in force, and so far as is consistent therewith.

Additional Commissioners.

11E.(1) The State Government may appoint

in a division an Additional Commissioner as it may deem expedient. The Additional Commissioner shall exercise such powers and discharge such duties of the Commissioner in his division under the provisions of this Act or any law for the time being in force as the State Government may, by notification in the Official Gazette, specify in that behalf.

(2) The Additional Commissioner appointed under sub-section (1) shall not be subordinate to the Commissioner except in such matters as the State Government may, by general or special order, specify in this behalf.

Assistant Commissioners

11F. The State Government may also appoint so many Assistant Commissioners as may be expedient to assist the Commissioner. The Assistant Commissioners shall be subordinate to the Commissioner, and shall exercise such powers and discharge such duties of the Commissioner in a division or part thereof under this Act or any law for the time being in force as the Commissioner, with the previous permission of the State Government, may direct."

6. In section 13, after the words "Deputy Commissioner", where they occur for the first time, the words "who shall be subordinate to the Commissioner and" shall be inserted.

7. In section 14, after sub-section (3), the following new sub-section shall be added, namely:-

"(4) The Additional Collector appointed under sub-section (1) shall not be subordinate to the Collector except in such matters as the State Government may, by general or special order specify in this behalf."

8. In section 15,-

(a) for the words

"Assistant Commissioners of the first and second grades" the words "Assistant or Deputy Collectors" shall be substituted;

(b) in the marginal

note, for the words "Assistant Commissioners" the words "Assistant or Deputy Collectors" shall be substituted.

9. In section 18,-

(1) in sub-section

(1), for the words "any Assistant Commissioner of the first grade" the words "any Assistant or Deputy Collector" shall be substituted;

(2) in sub-section

(2), for the words "Such Assistant Commissioner" the words "Such Assistant or Deputy Collector" shall be substituted.

10. In section 20, for the words "Assistant Commissioner", at both the places where they occur, the words "Assistant or Deputy Collector" shall be substituted.

11. In section 26, for the words "A Deputy Commissioner", at both the places where they occur, the words "A Commissioner, a Collector" shall be substituted.

12. In section 41,-

(1) in sub-section

(1)-

(a) after the words

"Save where it has been otherwise provided", the words and figures "and subject to the provisions in the Bombay Revenue Tribunal Act, 1939", shall be inserted;
Bom. XII of 1939.

(b) for clause (e),

the following new clauses shall be substituted, namely :-

"(e) if such

order is passed by a Collector exercising the powers of a Collector to the Commissioner;

(e-i) if such order

is passed by a Collector exercising the powers of a Settlement Officer during the currency of the term of settlement to the Settlement Commissioner;"

(c) in clause (g),

for the word "Board", the words "State Government" shall be substituted;

(d) after clause

(g), the following clause shall be inserted, namely :-

"(h) if such

order is passed by the Commissioner to the State Government.";

(2) in sub-section (3), for the words "to

the Board" the words, brackets, letters and figures "to the Commissioner or, as the case may be, the Settlement Commissioner under clauses (e) and (e-i) of sub-section (1), respectively" shall be substituted.

13. In section 43, in clause (b), for the words

"to the Board" the words "to the Commissioner or State Government" shall be substituted.

14. In section 46, for the words "The

Board", where they occur for the first time, the words

"The State Government, Commissioner" shall be substituted and the Explanation at the end shall be deleted.

15. In section 47, in sub-section (1) in the

proviso, the words "Settlement Commissioner", shall be deleted and for the words "the Board" the words "the Commissioner" shall be substituted.

The Bombay Ferries and inland Vessels Act, 1868 (Bom. II of 1868).

In sections 2, 2A, 4, 5 and 6 including the

marginal notes, for the words "State Government"

wherever they occur, the word "Commissioner" shall be substituted.

The Bombay Hereditary Offices Act, 1874 (Bom. III of 1874).

1. In section 5, in sub-section (1), after the

words "the State Government" the words "or in the case of a mortgage, charge, alienation, or lease not more than thirty year of the Commissioner" shall be inserted.

2. In section 6,-

(1) for the words

"State Government", where they occur for the first time, the word "Commissioner", and where they occur for the second time, the words "said Commissioner" shall, respectively, be substituted;

(2) for the words

"it thinks fit" the words "he thinks fit",

shall be substituted.

3. In section 45,-

(1) in clauses (j) and (h), for the words "State Government" the word "Commissioner" shall be substituted;

(2) in clause (j), for the word "it" the word "he" shall be substituted.

4. In section 74, after the words "control of", the words "the Commissioner and of" shall be inserted.

5. In section 77, for the words, "State Government", the word "Commissioner" shall be substituted.

6. To section 79, the following paragraph shall be added, namely :-

"The State

Government may delegate all or any of its powers under this section to any Commissioner and such Commissioner may thereupon exercise such powers within the local limits of his jurisdiction, subject to the revisional powers of the State Government under this section, and to any restrictions that the State Government may deem fit to impose."

The Bombay Irrigation Act, 1879

(Bom. VII of 1879).

The Bombay General Clauses Act, 1904 (Bom. I of 1904).

7. In section 84, after the words "to be performed by", the words "a Commissioner or" shall be inserted.

1. In section 11,

for the words, "State Government" the word "Commissioner" shall be substituted.

2. In section 57, in

sub-section (1), for the words "State Government" the word "Commissioner" shall be substituted.

3. In section 60,

for the words "Collector and" the words "Collector for the information of the Commissioner of the division and likewise to" shall be substituted.

In section 3, after clause (12), the following shall be inserted, namely :-

"(13)

'Commissioner' shall mean the Commissioner of a division appointed under the Bombay Land Revenue Code, 1879,".
Bom. V of 1879.

The Bombay Court of Wards Act, 1905

(Bom. I of 1905)

The Bombay Public Conveyances Act, 1920 (Bom. VII of 1920).

1. In section 12, for the words "as the State Government" the words "as the Commissioner, where such Courts of Wards exercise jurisdiction within his division, and the State Government in any other case" shall be substituted.
2. In sections 16,18,19 and 27, for the words "State Government" wherever they occur, the word "Commissioner" shall be substituted.
3. In section 43,-
 - (a) in clause (a), for the word "Collector" the word "Commissioner" shall be substituted;
 - (b) after clause (a), the following new clause shall be inserted, namely:-
"(b) where the order is that of a Collector, to the Commissioner, or where any such officer or Board has jurisdiction, to such officer or Board; and".
4. In section 44,-
 - (a) for the words "State Government", at both the places where they occur, the words "Commissioner and the State Government" shall be substituted;
 - (b) for the word "it" the words "he or it" shall be substituted;
 - (c) in the marginal note, for the words "Control of Provincial Government" the words "Control of Commissioner and State Government" shall be substituted.

1. In section 36,-
 - (a) in sub-section (1),-
 - (i) for the words "State Government" the word "Commissioner" shall be substituted;
 - (ii) for the word "its" the word "his" shall be substituted;
 - (b) in sub-sections (2) and (4), for the words "State Government" the word "Commissioner" shall be substituted.
2. In section 37, for the words "State Government", where they occur for the second time the word "Commissioner" shall be substituted.

The Bombay Co-operative Societies Act, 1925 (Bom. VII of 1925).

1. In section 46 B,-
 - (a) for the words "State Government", wherever they occur, the word "Commissioner" shall be substituted;

(b) in sub-section

(4), for the word "it", the word "him" shall be substituted.

2. In section 64, in sub-section (1), in clause

(a), for the words "to the State Government", the words "to the Commissioner, in case of an order made under section 50A and any other case, to the State Government" shall be substituted.

[The Bombay Agricultural Produce Markets Act, 1939 (Bom. XXII of 1939).]

[Now see the Maharashtra Agricultural Produce Marketing (Development and Regulation) Act, 1963 (Maharashtra XX of 1964)]

1. In section 3, for the words "State Government", wherever they occur, the word "Commissioner" and for the word "its" the word "his" shall be substituted.

2. In section 4, for the words "State Government" wherever they occur, the word "Commissioner", and for the word "it" the word "he" shall be substituted.

3. In section 4A, for the words "State Government", the word "Commissioner" shall be substituted.

4. In section 15, in sub-sections (1) and (3), for the words "State Government", the word "Commissioner" shall be substituted.

5. In section 18, for the words "State Government" the word "Commissioner" and for the words "it thinks fit", the words "he thinks fit" shall be substituted.

6. In section 19, in sub-section (1),-

(a) for the words "State Government", where they occur for the first and third times, the word "Commissioner", shall be substituted;

(b) for the words "State Government", where they occur for the second time, the words "Commissioner with the approval of the State Government" shall be substituted; and

(c) after the words "supersede the market committee", the words "and report the fact of such supersession to the State Government" shall be added.

7. In section 25, after the words "on it" the words, "or on the Commissioner" shall be inserted.

8. In section 28,-

(a) for the words "State Government", wherever they occur, including the marginal note the word "Commissioner" shall be substituted;

(b) for the words

"itself" and "it" the words "himself"

and "he" shall, respectively, be substituted.

[The Bombay Warehouses Act, 1947 (Bom. LVI of 1947).]

[Now see the Bombay Warehouses Act, 1960 (Bombay V of 1960).]

In section 10,-

(a) in sub-section

(3),-

(i) for the words

"State Government" the word "Commissioner"

shall be substituted;

(ii) for the words

"itself" and "it" the words "himself"

and "he" shall, respectively, be substituted.

(b) in sub-section

(4), for the words "State Government" the word

"Commissioner" shall be substituted.

The Bombay Taluqdari Tenure Abolition Act, 1949 (Bom. LXII of 1949).

In section 6, for the words "State

Government" the word "Commissioner" shall be substituted.

The Bombay Police Act, 1951 (Bom. XXII of 1951).

1. In section 2, after clause (13), the

following clause shall be inserted, namely :-

"(13A) 'Revenue

Commissioner' means the Commissioner of a division appointed under section 6A of the Bombay Land Revenue Code, 1879".

Bom. V of 1879.

2. In section 17, in sub-section (2), the words

"and shall be subject to the lawful orders of the Revenue Commissioner" shall be added at the end.

3. In section 24, in sub-section (1), after the words "District Magistrate" the words "and the Revenue Commissioner" shall be inserted.

4. In section 28, in sub-section (2), for the word "Commissioner", the words "Revenue Commissioner" shall be substituted.

5. In section 33, in sub-section (4), for the words "reported to the State Government or such authority as the State Government may appoint in this behalf", the words "reported to the Revenue Commissioner and the State Government" shall be substituted.

6. In section 51, in sub-section (3), after the words "District Magistrate, in district" the words "with the previous sanction of the Revenue Commissioner" shall be inserted.

7. In section 52, in sub-section (1), after the words "as the case may be", the words "with the previous sanction of the Revenue Commissioner" shall be inserted.

8. In section 159, for the words, "No

Magistrate" the words "No Revenue Commissioner, Magistrate" shall be substituted.

The Bombay Cinema (Regulation) Act, 1953 (Bom. XI of 1953).

In section 10,-

(a) after the words

"State Government", the words "or the Commissioner";

(b) after the word

"it", the words "or he" shall be inserted.

The Central Provinces and Berar General Clauses Act, 1914

(C.P. and Berar Act I of 1914).

1. In section 2, for clause (13) the following shall be substituted, namely :-

"(13)

'Commissioner' shall mean the Commissioner of a division appointed under the Madhya Pradesh Land Revenue Code, 1954."

M. P. Act II of 1955.

2. After section 18, the following new section shall be inserted, namely :-

Substitution of certain designations.

"18-A. Whenever

an expression mentioned in column I of the table hereunder printed occurs in any law for the time being in force in the Vidarbha Region of the State of Bombay then, there shall be substituted therefor the expression set opposite to it in column 2 of the said table, and there shall also be made in any sentence in which the expression occurs such consequential amendments as the rules of grammar may require.

Table.

Column I.

Column 2.

Deputy Commissioner....

Collector.

Assistant Commissioner or Assistant Commissioner

of the first grade or second grade

Assistant or Deputy Collector."

The General Clauses Act, 1308 Fasli (Hyd. Act III of 1308 F.)

In section 2, after clause (10), the following new clause shall be inserted, namely :-

"(10A)

'Commissioner' shall mean the Commissioner of a division appointed under the Hyderabad Land Revenue Act;".

Hyd. Act III of 1317.

The Hyderabad Ferries Act, 1314 Fasli (Hyd. Act II of 1314 F.)

1. In section 3,-

(a) for the word

"Government" except in the expression " Government ferry" or "Government ferries", the word

"Commissioner" shall be substituted;

(b) in the marginal

note, for the words "Powers of Government" the words

"Powers of Commissioner" shall be substituted.

2. In section 6, for the word "Government" the word "Commissioner" shall be substituted.

3. In section 7, for the word "Government" where it occurs for the second and third times, the word "Commissioner" shall be substituted.

4. In section 9, for the word "Government" at both the places where it occurs, the word "Commissioner" shall be substituted.

5. In section 10, for the word "Subedar" the word "Commissioner" shall be substituted.

The Railways, Government Irrigation Sources and other Public Buildings Protection Act, 1321, Fasli (Hyd. Act I of 1321 F.)

In sections 13 and 16, for the words "Board of Revenue" the word "Commissioner" shall be substituted.

[The Hyderabad Irrigation (Betterment, Contribution and Inclusion of Fees) Act, 1952 (Hyd. Act V of 1952).]

[Now see the Maharashtra Irrigation Act, 1976 (Maharashtra XXXVIII of 1976).]

1. In section 7, for the words "Board of Revenue" and "Board", the word "Commissioner" shall be substituted.

2. In section 8, for the words "Board of Revenue" at both the places where they occur, the word "Commissioner" shall be substituted.

3. In section 9, for the words "Board of Revenue" and "Board" the word "Commissioner" shall be substituted.

The Bombay General Clauses Act, 1904 (Bom. I of 1904) as applied to the Kutch area of the State of Bombay by the Kutch (Application of Laws) Order, 1949.

In section 13, after clause (12), the following shall be inserted, namely :-

"(13)

'Commissioner' shall mean the Commissioner of a division appointed under of the Bombay Land Revenue Code, 1879, as extended to the Kutch area of the State of Bombay under the Part C States (Laws) Act, 1950;"

Bom. V of 1879, XXX of 1950.

The Bombay Court of Wards Act, 1905 (Bom. I of 1905) as extended to the Kutch area of the State of Bombay under the Part C States (Laws) Act, 1950 (XXX of 1950).

1. In section 12, for the words "State Government", the word "Commissioner" shall be substituted.

2. In sections 16, 18 and 27 for the words "State Government" the word "Commissioner" shall be substituted.

3. For section 19, the following shall be substituted, namely:-

Delegation of powers by Court of Wards.

"19. (1) Where

the Collector is not the Court of Wards with the general or special sanction of the Commissioner, the Court of Wards may, from time to time, delegate all or any of its powers to the Collector of any district in which any part of the property of a Government ward is situated, or to any other officer not below the rank of an Assistant or Deputy Collector whom it may appoint in this behalf, and may, at any time, with the like sanction, revoke such delegation.

(2) Where the

Collector is not the Court of Wards subject to any general or special orders of the Commissioner, the Court of Wards may exercise all or any of the powers conferred on it by this Act through the Collector of any district in which any part of the property of a Government ward is situated, or through any other officer not below the rank of an Assistant or Deputy Collector whom it may appoint in this behalf, and, subject to the like orders, any such Collector or Assistant or Deputy Collector may exercise all or any of the powers delegated to him under this Act through any Revenue Officer subordinate to him not below the rank of a Mahalkari.

(3) Where the

Collector is the Court of Wards, subject to the general or special orders of the Commissioner, the Court of Wards may, exercise all or any of the powers under this Act through an Assistant or Deputy Collector whom it may appoint in this behalf, and subject to like orders, any such Assistant or Deputy Collector may exercise all or any of the powers delegated to him under this Act through any Revenue Officer subordinate to him not below the rank of a Mahalkari."

4. In section 43, in sub-section (1), for clause

(a), the following shall be substituted, namely :-

"(a) Where the

order is that of a Commissioner or of any special officer, appointed, or Board constituted, under the proviso to section 3, to the State Government;

(b) where the order

is that of a Collector, to the Commissioner, or where any such officer or Board has jurisdiction, to such officer or Board; and"

5. In section 44,-

(a) for the words "State Government"

at both the places where they occur the words "Commissioner and State Government" shall be substituted;

(b) for the word "it" the words "he or it" shall be substituted; and

(c) in the marginal note for the words "Control of State Government" the words Control of Commissioner and State Government" shall be substituted.

The Bombay Court of Wards Act, 1905 (Bom. I of 1905) as adapted and applied to the State of Saurashtra by the State of

Saurashtra (Application of Central and Bombay Acts) Ordinance, 1948 (Sau. Ord. XXV of 1948).

1. In section 12, for the words "such one only of the Courts of Wards as the Government of Bombay", the words "such one only of the Courts of Wards as the Commissioner, where such Courts of Wards exercise jurisdiction within his division, and the State Government in any other case" shall be substituted.

2. In sections 16, 18 and 27, for the words "Government of Bombay" wherever they occur, the word "Commissioner" shall be substituted.

3. In section 19,-

(a) in sub-sections

(1) and (2),

(i) the words "Where the Collector is not the Court of Wards" shall be inserted at the commencement of each sub-section;

(ii) for the words

"Government of Bombay" the word "Commissioner" shall be substituted;

(b) after

sub-section (2), the following shall be added, namely :-

"(3) When the

Collector is the Court of Wards, subject to any special or general orders of the Commissioner, the Court of Wards may exercise all or any of the powers under this Act through an Assistant or Deputy Collector whom it may appoint in this behalf and subject to like orders, any such Assistant or Deputy Collector may exercise all or any of the powers delegated to him under this Act through any Revenue Officer subordinate to him not below the rank of a Mahalkari."

4. In section 43, in sub-section (1),-

(a) in clause (a),

for the word "Collector", the word "Commissioner" shall be substituted; and

(b) after clause

(a), the following new clause shall be inserted, namely:-

"(b) where the

order is that of a Collector, to the Commissioner, or where any such officer or Board has jurisdiction, to such officer or Board; and"

5. In section 44,-

(a) for the words

"Government of Bombay" at both the places where they occur, the words "Commissioner and the Government of Bombay" shall be substituted;

(b) for the word

"it" the words "he or it" shall be substituted;

(c) in the marginal

note, for the words "Control of the Government to Bombay",

the words "Control of the Commissioner and State Government" shall be substituted.

The Saurashtra General Clauses Ordinance, 1949 (Sau. Ord. LXXI of 1949).

In section 2,-

(a) clause 11 shall

be deleted;

(b) after clause

(13), the following shall be inserted, namely :-

"(13A)

'Commissioner' means the Commissioner of a division appointed under the Bombay Land Revenue Code, 1879, as applied to the Saurashtra area of the State of Bombay by the State of Saurashtra (Application of Central and Bombay Acts) Ordinance, 1948;".

Bom. V of 1879. Sau. Ord. XXV of 1948.

The Cattle Trespass Act, 1871 (I of 1871).

In section 4, for the words "State Government" the word "Commissioner" shall be substituted.

The Northern India Ferries Act, 1878, (XVII of 1878).

1. In section 4,-

(a) for the words

"State Government" the word "Commissioner" shall be substituted;

(b) for the words

"in its opinion" and "it deems necessary,"

the words "in his opinion" and "he deems necessary" shall, respectively, be substituted.

The Saurashtra Village Police Ordinance, 1949 (Sau. Ord. XXXII of 1949).

2. In section 7, for the words "State Government" the word "Commissioner" shall be substituted.

In sections 4 and 5, for the word "Government" the word "Commissioner" shall be substituted.

The Bombay Ferries and Inland Vessels Ad, 1868 (Bom. II of 1968) as applied to the Kutch area of the State of Bombay by Part C States (Laws) Act, 1950 (XXX of 1950).

In sections 2, 2A, 4, 5 and 6, for the words "State Government", wherever they occur, including the marginal notes, the word "Commissioner" shall be substituted.

[The Irrigation Act, (Hyd. Act XXIV of 1357 F.).]

[Now see the Maharashtra Irrigation Act, 1976 (Maharashtra XXXVIII of 1976).]

1. In section 3, clause (i) shall be deleted.

2. In sections 27 and 56, for the words "Board of Revenue", at both the places where they occur, the word "Commissioner" shall be substituted.

[The Saurashtra Irrigation Act, 1951 (Sau. Act XV of 1951).]

[Now see the Maharashtra Irrigation Act, 1976 (Maharashtra XXXVIII of 1976).]

In section 47, in sub-section (1), for the word

"Government", at both the places where it occurs; the word "Commissioner" shall be substituted.

The Central Provinces Court of Wards Act, 1899 (C.P. Act XXIV of 1899).

1. In section 3, for the words "the Commissioner shall be the Court of Wards for the limits of his division" the words "the Collector shall be the Court of Wards for the limits of his district," shall be substituted.

2. In section 9, for the words "divisions, such one only of the Courts of Wards as the State Government may determine" the words "districts, such one only of the Courts of Wards as the Commissioner, where such Courts of Wards exercise jurisdiction within his division, and the State Government in any other case may determine" shall be substituted.

3. In sections 15(2), 16(1) and 25, for the words "State Government", wherever they occur, the word "Commissioner" shall be substituted.

4. In section 18,-

(a) in sub-section

(1),-

(i) for the words

"State Government" the word "Commissioner" shall be substituted;

(ii) for the words

"the Deputy Commissioner of any district" the words

"any Sub-Divisional Officer in any district" shall be substituted;

(b) for sub-section

(2), the following shall be substituted, namely :-

"(2) Subject to

any general or special orders of the Commissioner, the Court of Wards may exercise all or any of the powers under this Act through a Sub-Divisional Officer whom it may appoint in this behalf and subject to like orders, any such Sub-Divisional Officer may exercise all or any of the powers delegated to him under this Act through any revenue officer not below the rank of a Tahsildar."

5. In section 38,-

(a) for the words

"State Government", at both the places where they occur, the words "Commissioner and State Government" shall be substituted;

(b) for the word

"it" the words "he or it" shall be substituted;

(c) in the marginal

note, after the words "Control of" the words "Commissioner and" shall be inserted.

The Bombay Public Conveyances Act, 1920 (Bom. VII of 1920) as

applied to the Kutch area of the State of Bombay by the Kutch (Application of Laws) Order, 1949.

1. In section 36,-

(a) in sub-section

(1), after the words "State Government" the words "or the Commissioner" shall be inserted;

(b) after the word

"its" the words "or his" shall be inserted;

(c) in sub-sections

(2) and (4), after the words "State Government" the words "or, as the case may be, the Commissioner" shall be inserted.

2. In section 37, after the words "State Government", where they occur for the second time, the words "or, as the case may be, the Commissioner" shall be inserted.

The Hyderabad Public Conveyances Act, 1956 (Hyd. Act XXXIX of 1956).

In section 38, in sub-section (1),-

(i) after the word

"Government" the words "or the Commissioner" shall be inserted;

(ii) for the words

"within the State" the words "within its or his jurisdiction" shall be substituted;

(iii) in sub-section

(2) and in clause (a) of sub-section (5), after the word "Government" the words "or, as the case may be, the Commissioner" shall be inserted.

[The Bombay Co-operative Societies Act, 1925 (Bom. VII of 1925) as modified and applied to the Saurashtra area of the State of Bombay by the State of Saurashtra (Application of Central and Bombay Acts) Ordinance, 1948 (Sau. Ord. XXV of 1948).]

[Now see the Maharashtra Co-operative Societies Act, 1960 (Maharashtra XXIV of 1961).]

In section 64, for the words "to the Government of Bombay" the words, figures and letter "to the Commissioner in case of an order made under section 50A, and in any other case to the State Government" shall be substituted.

The Bombay Co-operative Societies Act, 1925 (Bom. VII of 1925), as applied to the Kutch area of the State of Bombay by the Kutch (Application of Laws) Order, 1949.

In section 64, for the words "to the State Government" the words, figures and letter "to the Commissioner in case of an order made under section 50A, and in any order case, to the State Government" shall be substituted.

[The Co-operative Societies Act, 1912 (11 of 1912), in its application to Vidarbha region of the State of Bombay.]

[Now see the Maharashtra Co-operative Societies Act, 1960 (Maharashtra XXIV of 1961).]

In section 42D, in sub-section (3), for the

words "State Government", at both the places where they occur, the word "Commissioner" shall be substituted.

[The Hyderabad Agricultural Market Act, 1339 Fasli (Hyd. Act II of 1339F.).]

[Now see the Maharashtra Agricultural produce Marketing (Development and Regulation) Act, 1963 (Maharashtra XX of 1964).]

1. In section 3, for the word "Government", at both the places where it occurs, the word "Commissioner" shall be substituted.

2. In section 14, for the word "Government", at both the places where it occurs, the words, "Commissioner or such officer as the State Government may authorise in this behalf" shall be substituted.

3. In section 15, in sub-section (1),-

(a) for the word

"Government", where it occurs for the first time, the word "Commissioner" shall be substituted.

(b) for the word

"Government", where it occurs for the second time, the words "Commissioner with the previous approval of the State Government" shall be substituted;

(c) after the words

"dissolve it", the words, "and report the fact of such dissolution to the State Government" shall be added.

4. In section 17,-

(1) for the word

"Government", wherever it occurs, the word "Commissioner" shall be substituted;

(2) the words

"signed by a Secretary to the Government" shall be deleted.

[The Central Provinces and Berar Agricultural Produce Market Act, 1935 (C. P. and Berar Act XXIX of 1935).]

[Now see the Maharashtra Agricultural Produce Marketing (Development and Regulation) Act, 1963 (Maharashtra XX of 1964).]

1. In section 3, for the words "State Government", at both the places where they occur, the word "Commissioner" shall be substituted.

2. In section 14, for the words "State Government" the words "Commissioner or such officer as the State Government may authorise in this behalf" shall be substituted.

3. In section 15, in sub-section (1),-

(a) for the words

"State Government", where they occur for the first time, the word "Commissioner" shall be substituted;

(b) for the words

"State Government", where they occur for the second time, the words "Commissioner with previous approval of the State Government" shall be substituted;

(c) after the words

"supersede it", the words "and report the fact of such supersession to the State Government" shall be inserted.

[The Saurashtra Agricultural Produce Market Act, 1955 (Sau. Act XIV of 1955).]

[Now see the Maharashtra Agricultural Produce Marketing (Development and Regulation) Act, 1963 (Maharashtra XX of 1964).]

4. In section 16, for the words "State Government", at both the places where they occur, the word "Commissioner" shall be substituted.

1. In sections 3 and

4, for the word "Government", wherever it occurs, the word "Commissioner" shall be substituted.

2. In section 15, in

sub-sections (1) and (3), for the word "Government" the word "Commissioner" shall be substituted.

3. In section 18,

for the word "Government", wherever it occurs, the word "Commissioner" and in sub-section (1), for the words "it thinks fit" the words "he thinks fit" shall be substituted.

4. In section 19, in

sub-section (1),-

(a) for the word

"Government", where it occurs for the first and third times, the word "Commissioner" shall be substituted;

(b) for the word

"Government", where it occurs for the second time, the words "Commissioner with the previous approval of the State Government" shall be substituted;

(c) after the words

"supersede such market committee", the words "and report the fact of such supersession to the State Government" shall be inserted.

5. In section 25,

after the words "on it", the words "or on the Commissioner" shall be inserted.

6. In section 28,-

(a) for the word

"Government" the word "Commissioner" shall be substituted;

(b) for the word

"itself" the word "himself" and for the words "as it" the words "as he" shall be substituted.

The Hyderabad Warehouses Regulation Act, 1358 Fasli (Hyd. Act XLVI of 1358F.).

In section 10,-

(a) in sub-section

(3),-

(i) for the word

"Government" the word "Commissioner" shall be

substituted;

(ii) for the words

"itself" and "it" the words "himself" and

"he" shall, respectively, be substituted.

(iii) in sub-section

(4), for the word "Government" the word "Commissioner"

shall be substituted.

The Saurashtra Warehouses Act, 1956 (Sau. Act XIV of 1956).

In section 10,-

(a) in sub-section

(3),-

(i) for the word

"Government" the word "Commissioner" shall be

substituted;

(ii) for the words

"itself" and "it" the words "himself" and

"he" shall, respectively, be substituted.

(b) in sub-section

(4), for the word "Government" the word "Commissioner"

shall be substituted.

The Police Act 1861 (V of 1861). in its application to the
Vidarbha region of the State of Bombay.

1. In section 4, to the second paragraph, the
following proviso shall be added, namely :-

"Provided that the Magistrate of the
district shall be under the general control and direction of the
Commissioner concerned".

2. In section 15, in sub-section (4), after the
words "Magistrate of the district", the words "with
the previous sanction of the Commissioner and" shall be
inserted.

3. In section 15A, in sub-section (2), for the
words "State Government" the word "Commissioner"
shall be substituted.

The Hyderabad District Police Act, 1329 Fasli (Hyd. Act X of
1329 F.).

To section 4, the following proviso shall be
added at the end, namely :-

"Provided that the Collector of the
district shall be under the general control and direction of the
Commissioner.".

The Saurashtra Police Act, 1954 (Sau. Act XVIII of 1954).

1. In section 14, in sub-section (2), the words,
"and shall be subject to the lawful orders of the
Commissioner" shall be added at the end.

2. In section 21 and in sub-section (2) of
section 25, for the words "District Magistrate" the
words "Commissioner and the District Magistrate" shall
be substituted.

In section 29, after sub-section (4), the
following new sub-section shall be inserted, namely :-

"(4A) Subject

to the provisions of sub-section (4), every rule made under clause (m) of sub-section (1) shall be forthwith reported to the Commissioner and the State Government".

4. In section 47, in sub-section (3), after the words "District Magistrate" the words "with the previous sanction of the Commissioner" shall be inserted.

5. In section 48, in sub-section (1), after the words, "District Magistrate" the words "with the previous sanction of the Commissioner" shall be inserted.

6. In section 150, for the words "No Magistrate" the words "No Commissioner, Magistrate" shall be substituted.

[The Hyderabad Cinemas Regulation Act, 1952 (Hyd. Act XLVI of 1952).]

[Now see the Bombay Cinemas (Regulation) Act, 1953 (Bombay XI of 1953).]

In section 10, for the word "Government" the word "Commissioner", and for the word "it" the word "he" shall be substituted.

[The Madhya Pradesh Cinemas (Regulation) Act, 1952 (M.P. Act XVII of 1952).]

[Now see the Bombay Cinemas (Regulation) Act, 1953 (Bombay XI of 1953).]

"In section 10, for the words "State Government" the word "Commissioner" and for the word "it" the word "he" shall be substituted.

The Saurashtra Cinemas (Regulation) Act, 1953 (Sau. Act XVII of 1953).

In section 10, for the word "Government" the word "Commissioner", and for the word "it" the word "he" shall be substituted.

The Cattle Trespass Act, 1871 (I of 1871), as applied and adapted to the Saurashtra area of the State of Bombay by the State of Saurashtra (Application of Central and Bombay Acts) Ordinance, 1948 (Sau. Ord. XXV of 1948).

In section 4, for the words "State Government" the word "Commissioner" shall be substituted.

The Bombay District Police Act, 1890 (Bom. IV of 1890), as applied to the Kutch area of the State of Bombay by the Kutch (Application of Laws) Order, 1949.

1. In section 13, in sub-section (2), for the words "shall be subject to the lawful orders of the State Government", the words "shall be subject to the lawful orders of the Commissioner" shall be substituted.

2. In section 25, in sub-section (4), for the words "where the State Government so directs", the words "where the Commissioner so directs" shall be substituted.

3. In section 25A, for the words "State Government", wherever they occur, the word "Commissioner" shall be substituted.

4. In section 28, for the words 'Magistrate of the District and the State Government', the words "Magistrate of the district and the Commissioner" shall be substituted.

5. In section 32, in sub-section (2), for the words "State Government" the word "Commissioner" shall be substituted.

6. In section 39, in sub-section (3), (or the words "State Government", wherever they occur, the word "Commissioner" shall be substituted.

[The Land Acquisition Act, 1894 (I of 1894)

[This entry was added by G.N., R.D., No. TTA, 1057-85418-L, dated the 26th May, 1958.]

To the proviso to section 11, the following shall be added, namely :-

"Save that the power of such approval shall be exercisable by the Commissioner in lieu of the State Government where an award not exceeding one lakh of rupees is made to fix compensation under the provisions of the Bombay Taluqdari Tenure Abolition Act, 1949 (Bom. LXII of 1949); the Bombay Personal Inams Abolition Act, 1952 (Bom. XLII of 1953); the Bombay Merged Territories (Baroda Mulgiras Tenure Abolition) Act, 1953 (Bom. XLV of 1953); the Bombay Merged Territories and Areas (Jagirs Abolition) Act, 1953 (Bom. XXXIX of 1954), and the Bombay Merged Territories Miscellaneous Alienations Abolition Act, 1955 (Bom. XXII of 1955).]"

[The Baroda Gam Nokari Niyam, 1933.

[This entry was added by G.N., R.D., No. IVS, 7175/63311, dated the 4th June, 1958.]

In rule 6, the following clause shall be inserted at the end, namely:-

"(u) 'Sarsuba' means the Commissioner of a Division appointed under the Bombay Land Revenue Code, 1879 (Bom. V of 1879)."

[The Saurashtra District Panchayat Act, 1956 (Sau. Act XXV of 1956).

[This entry was added by G.N., R.D., No. DCR, 1758-C, dated the 18th June, 1958.]

1. In sections 6, 24, 40, 64(b), 65, 66 and 72, for the word 'Government' wherever it occurs, the word 'Commissioner' shall be substituted".

2. In section 66, for the words 'which is in its opinion sufficient' the words 'which is in his opinion sufficient' and for the words 'as it deems fit' the words 'as he deems fit' shall be substituted.]

[The Nagpur Improvement Trust Act, 1936 (C.P. and Berar Act No. XXXXVI of 1936).

[This entry was added by G.N., L.S.G&P.H.D., No. NIT, 2758-E, dated the 27th June, 1958.]

1. In section 46-A, for the words "State Government" the word "Commissioner" shall be substituted.

2. In proviso (b) of sub-section (1) of section 52-B, for the words "State Government" the word "Commissioner" shall be substituted.]

[The Cotton Ginning and Pressing Factories Act, 1925 (XII of 1925), in its application to the State of Bombay.

[This entry was added by G.N., R.D., No. RVA, 2557-85398-R, dated the 23rd June, 1958.]

In section 5B,-

(a) for the words

"State Government" wherever they occur, the word

"Commissioner", and

(b) in sub-section

(1), for the words "it may by an order" the words "he may by an order" shall be substituted.]

[The Land Acquisition Act, 1894 (I of 1894) in its application to the pre-Reorganisation State of Bombay excluding the transferred territories.

[These entries was added by G.N., R.D., No. LAQ, 2558/V, dated the 5th September, 1958.]

1. In section 3-A-

(i) after the words

"State Government", where they occur for the first time, the words "or the Commissioner" shall be inserted;

(ii) after the words

"by the State Government in this behalf" the words "or, as the case may be, any officer authorised by the Commissioner" shall be inserted.

2. In section 4-

(i) in sub-section

(1), after the words, "appropriate Government" the words "or the Commissioner" shall be inserted;

(ii) in

sub-section(2), after the words, "such Government" the words "or, as the case may be, by the Commissioner" shall be inserted.

3. In section 5-A, in sub-section (2), after the words "appropriate Government", where they occur at two places, the words "or, as the case may be, of the Commissioner" shall be inserted.

4. In section 6-

(i) in sub-section

(1)-

(a) after the words

"appropriate Government" the words "or, as the case may be, the Commissioner" shall be inserted;

(b) after the words

"its orders" the words "or, as the case may be, under the signature of the Commissioner" shall be inserted;

(ii) in sub-section

(3), after the words "appropriate Government" the words "or, as the case may be, the Commissioner" shall be inserted.

5. In section 7, after the words "in this behalf" the words "or, as the case may be, the Commissioner" shall be inserted.

6. In section 17-

(i) in sub-section

(1), after the words "appropriate Government" the words "or the Commissioner;" shall be inserted;

(ii) in sub-section

(2)-

(a) after the words

"the State Government" the words "or the Commissioner" shall be inserted;

(b) after the words

"appropriate Government" the words "or, as the case may be, of the Commissioner" shall be inserted;

(iii) in sub-section

(4)-

(a) after the words

"appropriate Government" where they occur at two places, the words "or, as the case may be, of the Commissioner" shall be inserted;

(b) for the words

"it does so direct" the words "it or he does so direct" shall be substituted.

The Land Acquisition Act, 1894 (I of 1894), in its application to the Vidarbha Region of the State of Bombay.

1. In section 4-

(i) in sub-section

(1), after the words, "appropriate Government" the words "or the Commissioner" shall be inserted;

(ii) in sub-section

(2), after the words "such Government" the words "or, as the case" may be, by the Commissioner" shall be inserted.

2. In section 5-A, in sub-section (2), after the words "appropriate Government" where they occur at two places, the words "or, as the case may be, of the Commissioner" shall be inserted.

3. In section 6-

(i) in sub-section

(1)-

(a) after the words

"appropriate Government" the words "or, as the case may be, the Commissioner" shall be inserted;

(b) after the words

"its orders" the words "or, as the case may be, under the signature of the Commissioner" shall be inserted;

(ii) in sub-section

(3), after the words "appropriate Government" the words "or, as the case may be, the Commissioner" shall be inserted.

4. In section 7, after the words "in this behalf" the words "or, as the case may be, the Commissioner" shall be inserted.

5. In section 17-

(i) in sub-section

(1), after the words "appropriate Government" the words "or, the Commissioner" shall be inserted;

(ii) in sub-section

(2)-

(a) after the words

"the State Government" the words "or, the Commissioner" shall be inserted;

(b) after the words

"appropriate Government" the words "or, as the case may be, of the Commissioner" shall be inserted.

(iii) in sub-section

(4)-

(a) after the words

"appropriate Government" where they occur at two places, the words "or, as the case may be, of the Commissioner" shall be inserted;

(b) for the words

"it does so direct" the words "it or he does so direct" shall be substituted.

The Land Acquisition Act, 1894 (I of 1894), in its application to the Kutch area of the State of Bombay.

1. In section 4-

(i) in sub-section

(1), after the words "appropriate Government" the words "or the Commissioner" shall be inserted;

(ii) in sub-section

(2), after the words "such Government" the words "or, as the case may be, by the Commissioner" shall be inserted.

2. In section 5-A, in sub-section (2), after the

words "appropriate Government", where they occur at two places, the words "or, as the case may be, of the Commissioner" shall be inserted.

3. In section 6-

(i) in sub-section

(1)-

(a) after the words

"appropriate Government" the words "or, as the case may be, the Commissioner" shall be inserted;

(b) after the words

"its orders" the words "or, as the case may be, under the signature of the Commissioner" shall be inserted;

,

(ii) in sub-section

(3), after the words "appropriate Government" the words "or, as the case may be, the Commissioner", shall be inserted;

4. In section 7, after the words "in this

behalf" the words "or, as the case may be, the Commissioner" shall be inserted.

5. In section 17-

(i) in sub-section

(1), after the words "appropriate Government" the words "or the Commissioner" shall be inserted;

(ii) in sub-section

(2), after the words "appropriate Government" the words "or, as the case may be, of the Commissioner", shall be inserted;

(iii) in sub-section

(4)-

(a) after the words

"appropriate Government" where they occur at two places, the words "or, as the case may be, the Commissioner" shall be inserted;

(b) for the words

"it does so direct" the words "it or he does so direct" shall be substituted.

The Land Acquisition Act, 1894 (I of 1894), as adapted and applied to the Saurashtra area of the State of Bombay.

1. In section 4-

(i) in sub-section

(1), after the words "appropriate Government" the words "or the Commissioner" shall be inserted;

(ii) in sub-section

(2), after the words "such Government" the words "or, as the case may be, by the Commissioner", shall be inserted.

2. In section 5-A, in sub-section (2), after the

words "appropriate Government", where they occur at two places, the words "or, as the case may be, the Commissioner" shall be inserted.

3. In section 6-

(i) in sub-section

(1)-

(a) after the words

"appropriate Government" the words "or, as the case may be, the Commissioner", shall be inserted;

(b) after the words

"its orders" the words "or, as the case may be, under the signature of the Commissioner" shall be inserted.

(ii) in sub-section

(3), after the words "appropriate Government" the words "or, as the case may be, the Commissioner" shall be inserted.

4. In section 7, after the words "in this

behalf" the words "or, as the case may be, the Commissioner" shall be inserted.

5. In section 17-

(i) in sub-section

(1), after the words "appropriate Government" the words "or the Commissioner" shall be inserted;

(ii) in sub-section

(2)-

(a) after the words

"the Government" the words "or the Commissioner"

shall be inserted;

(b) after the words

"appropriate Government" the words "or, as the

case may be, of the Commissioner" shall be inserted;

(iii) in sub-section

(4)-

(a) after the words

"appropriate Government" where they occur at two

places, the words "or, as the case may be, of the

Commissioner" shall be inserted;

(b) for the words"

it does so direct" the words "it or he does so direct"

shall be substituted.

The Land Acquisition Act, 1309F (Hyd. Act No. IX of 1309F).

1. In section 2-A-

(i) for the word

"Government", where it occurs for the first time the

words "or the Commissioner" shall be inserted;

(ii) for the words

"the Government may direct any officer, generally or

specifically authorised by the Government in this behalf" the

words "the Government or the Commissioner may direct any

officer, generally or specifically authorised by the Government or,

as the case may be, by the Commissioner in this behalf"

shall be substituted.

2. In section 3-

(i) in sub-section

(1), after the word "Government" the words "or the

Commissioner" shall be inserted;

(ii) in sub-section

(2), after the word "Government" the words "or, as

the case may be, by the Commissioner" shall be inserted;

3. In section 4-A, in sub-section (2), after the

word "Government" where it occurs at two places, the

words "or, as the case may be, of the Commissioner"

shall be inserted.

4. In section 5, in sub-section (1)-

(i) after the word

"Government", where it occurs for the first time, the

words "or the Commissioner" shall be inserted;

(ii) after the words

"in this behalf" the words "or, as the case may be,

under the signature of the Commissioner" shall be inserted.

5. In section 12,-

(i) in sub-section

(1), after the word "Government" the words "or the

Commissioner" shall be inserted;

(ii) in sub-section

(3)-

(a) after the words

"Government" where they occur at two places, the words

"or, as the case may be, the Commissioner" shall be

inserted;

(b) for the words

"it does so direct" the words "it or he does so

direct" shall be substituted.]

[The Land Acquisition Act, 1894 (I of 1894), in its

application to the pre-Reorganisation State of Bombay excluding

the transferred territories.

[These entries were added by G.N., R.D., No. LAQ-2558/V, dated the 22nd September 1958.]

In section 3, in clause (c), after the words

"appropriate Government" the words "or by the

Commissioner" shall be inserted.

The Land Acquisition Act, 1894 (I of 1894), as adapted and

applied to the Saurashtra area of the State of Bombay.

Do.

do.

The Land Acquisition Act, 1894 (I of 1894), in its application

to the Kutch area of the State of Bombay.

In section 3, in clause (c), after the words

"appropriate Government" the words "or by the

Commissioner" shall be inserted.

The Land Acquisition Act, 1894 (I of 1894), in its application

to the Vidarbha region of the State of Bombay.

Do .

do.

The Land Acquisition Act, 1309-F (Hyderabad Act IX of 1309-F)

In section 2, in clause (c), after the word

"Government" the words "or the Commissioner"

shall be inserted.]

[The City of Nagpur Corporation Act, 1948 (Central Provinces

and Berar Act No. 11 of 1950).

[This entry was added by G.N., L.S.G. & P.H.D., No. NMC-6258-C, dated the 28th October, 1958.]

1. In proviso to Clause (vii) of sub-section (2)

of section 53, for the words "Provincial Government"

the word "Commissioner" shall be substituted.

2. In sub-section (1) of section 297, for the

words "Provincial Government" the word "Commissioner"

shall be substituted.]

[The Glanders and Farcy Act, 1899 (XIII of 1899).

[These entries were added by G.N., A & F.D., No. RA-6035-R, dated the 18th December, 1958.]

In section 4, in sub-section (1)-

(a) after the words

"State Government" the words "or the Commissioner"

shall be inserted;

(b) for the words

"as it thinks fit" and "as it may prescribe"

the words "as it or he thinks fit" and "as it or

he may prescribe" shall, respectively, be substituted.

2. In section 7, after the words "State Government" at both the places where they occur the words "or the Commissioner" shall be inserted.

3. In sections 10 and 15, after the words "State Government" the words "or the Commissioner" shall be inserted.

The Hyderabad Surrah, Glandera, Farcy and Epizootic Lymphangiti Prevention Act (No. I of 1338-F.)

In section 3, after the word "Government" the words "or the Commissioner" shall be inserted;
The Dourine Act, 1910 (V of 1910).

In sections 3 and 4,-

(a) after the words

"State Government" the words "or the Commissioner" shall be inserted;

(b) for the words

"it thinks fit" the words "it or he thinks fit" shall be substituted.

The Bombay Agricultural Pests and Diseases Act, 1947 (Bom. XLIII of 1947).

1. In section 3, after the words "State Government" wherever they occur the words "or the Commissioner" shall be inserted;

2. In section 6, in sub-section (1), after the words "State Government" the words "and of the Commissioner" shall be inserted.

3. In section 12A, in sub-section (5), after the words "State Government" the words "or the Commissioner" shall be inserted.

4. In section 12D, after the words "State Government" the words "or the Commissioner" shall be inserted.

The Central Provinces and Berar Agricultural Pests and Diseases Act, 1936 (C.P. and Berar Act XXXV of 1936).

In section 6, in sub-section (2), after the words "State Government" the words "or the Commissioner" shall be inserted.

The East Panjab Agricultural Pests, Diseases and Noxious Weeds Act, 1949 (East Panjab Act IV of 1949), as extended to the Kutch area of the State of Bombay, under Part C States (Laws) Act, 1950 (XXX of 1950).

1. In section 3, after the words "State Government" wherever they occur the words "or the Commissioner" shall be inserted;

2. In section 6, in sub-section (1), after the words "State Government" the words "and of the Commissioner" shall be inserted.

The Bombay Animal Contagious Diseases (Control) Act, 1948 (Bom. LIX of 1948).

1. In section 4, in sub-sections (1) and (2), after the words "State Government" the words "or

the Commissioner in his division" shall be inserted.

2. In section 6-

(a) in sub-section

(1),-

(i) after the words

"State Government" where they occur for the first time,
the words "or the Commissioner in his division" shall
be inserted;

(ii) for the words

"as it may think fit" the words "as it or he may
think fit" shall be substituted;

(iii) after the

words "State Government" where they occur for the
second and third times, the words "or Commissioner"
shall be inserted.

(b) in sub-section

(2),-

(i) after the words

"State Government" the words "or Commissioner"
shall be inserted;

(ii) after the words

"transferred territories" at both the places where they
occur, the words "or, as the case may be, into the division"
shall be inserted.

3. In section 7, in sub-section (1), after the

words "State Government" the words "or the
Commissioner in his division" shall be inserted.

4. In section 13,-

(a) in sub-section

(1), for the words "State Government" the words
"Commissioner concerned" shall be substituted;

(b) in sub-sections

(2) and (3), for the words "State Government" the word
"Commissioner" shall be substituted;

(c) in sub-section

(4),-

(i) for the words

"State Government" the word "Commissioner"
shall be substituted;

(ii) for the words

"on its own motion" and for the words "submitted
to it" the words "on his own motion" and
"submitted to him" shall be substituted;

(d) in sub-section

(7), for the words "State Government" the word
"Commissioner" shall be substituted.

The Central Provinces and Berar Cattle Diseases Act, 1934
(C.P. and Berar Act XVI of 1934).

1. In section 3,-

(a) in sub-section

(1), after the words "State Government" the words "or

the Commissioner" shall be inserted;

(b) in sub-section

(2), after the words "State Government" the words "or the Commissioner" shall be inserted;

2. In section 10,-

(a) after the words

"State Government" at both the places where they occur the words "or the Commissioner" shall be inserted;

(b) for the words

"as it may think fit" the words "as it or he may think fit" shall be substituted.

The Bombay Animal Contagious Diseases (Control) Act, 1948

(Bom. LIX of 1948), as extended to the Kutch area of the State of Bombay under Part C States (Laws) Act, 1950 (XXX of 1950).

1. In section 4, in sub-sections (1) and (2),

after the words "State Government" the words "or the Commissioner in his division" shall be inserted.

2. In section 6-

(a) in sub-section

(1),-

(i) after the words

"State Government" where they occur for the first time, the words "or the Commissioner in his division" shall be inserted;

(ii) for the words

"as it may think fit" the words "as it or he may think fit" shall be substituted;

(iii) after the

words "State Government" where they occur for the second and third times, the words "or Commissioner" shall be inserted.

(b) in sub-section

(2),-

(i) after the words

"State Government" the words "or Commissioner" shall be inserted;

(ii) for the words

"the State" where they occur for the first time the words "the Kutch area of the State of Bombay or, as the case may be, into his division" shall be substituted;

(iii) for the words

"the State" where they occur for the second time the words "such area or division" shall be substituted.

3. In section 7, in sub-section (1), after the

words "State Government" the words "or the Commissioner in his Division" shall be inserted.

4. In section 13,-

(a) in sub-section

(1), after the words "State Government" the words "Commissioner concerned" shall be substituted;

(b) in sub-sections

(2) and (3),-

(i) for the words

"State Government" the word "Commissioner"

shall be substituted;

(c) in sub-section

(4),-

(i) for the words

"State Government" the word "Commissioner"

shall be substituted;

(ii) for the words

"on its own motion" the words "on his own motion"

and for the words "submitted to it" the words submitted to him" shall be substituted.

(d) in sub-section

(7), for the words "State Government" the words

"Commissioner" shall be substituted.]

[The Land Acquisition Act, 1894 (I of 1894), in its application to the pre-Reorganisation State of Bombay excluding the transferred territories

[These entries were added by G.N., R.D., No. LAQ-2558/15455-V, dated the 6th February, 1959.]

The Land Acquisition Act, 1894 (I of 1894), as adapted and applied to the Saurashtra area of the State of Bombay.

After section 3, in each of the said Acts the following new section shall be inserted, namely:-

The Land Acquisition Act, 1894 (I of 1894), in its application to the Kutch area of the State of Bombay.

Powers to be exercised by Commissioner by or under Act.

"3-1A. The powers conferred on the

Commissioner by or under this Act, shall be the powers exercisable by him in relation to the acquisition of land for those purposes only for which the State Government is the appropriate Government."

The Land Acquisition Act, 1894 (I of 1894), in its application to the Vidarbha region of the State of Bombay

The Land Acquisition Act, 1309F (Hyderabad Act IX of 1309F).

After section 2, the following new section shall be inserted, namely :-

Powers to be exercised by Commissioner by or under Act.

"2A. The powers conferred on the

Commissioner by or under this Act shall be the powers exercisable by him in relation to the acquisition of land for those purposes only for which the State Government is the appropriate Government.]"

[The Bombay Prevention of Fragmentation and Consolidation of Holdings Act, 1947 (Bom. LXII of 1947).

[This entry was added by G.N., R.D., No. CON-3558/43445-M, dated the 14th April, 1959.]

1. In clause (b) of section 31, for the words

"State Government" the words "Commissioner,

subject to the general orders of the State Government" shall be substituted.

2. In section 35-

(a) after the words

"State Government" the words "or the Commissioner in respect of such matters as the State Government may by general or special order specify in this behalf shall be inserted;

(b) after the words

"itself" and "it" the words "or himself, as the case may be" and "or he, as the case may be" shall respectively be inserted;

(c) in the marginal

note, after the words "State Government" the words "or Commissioner shall be inserted.]

[The Saurashtra District Panchayats Act, 1956 (Sau. XXV of 1956).

[This entry was added by G.N., L.S.G. & P.H.D., No. DPA-1158-C, dated the 1st June, 1959.]

1. In sections 56, 57, 74, 75, for the word

"Government" wherever it occurs the word "Commissioner" shall be substituted.]

Notifications

G. N., R. D., No. RVA. 2557/170960-R dated 27th February, 1958 (B. G. Part 4-B, page 210) - In exercise of the powers conferred by sub-section (3) of section 1 of the Bombay Commissioners of Divisions Act, 1957 (Bombay VIII of 1958), the Government of Bombay hereby appoints 3rd day of March 1958 as the date on which the said Act shall come into force.

G. N., L. S., G., & P.H.D. No. 2758-E dated 27th June, 1958 (B. G. Part 4-B, page 667) - In exercise of the powers conferred by sub-section (4) of section 3 of the Bombay Commissioners of Divisions Act, 1957 (Bombay VIII of 1958), the Government of Bombay hereby confers and imposes on the Commissioner, Nagpur Division, the powers and duties under the enactment hereinafter specified and for that purpose adds to and specifies in the Schedule to the said Act the adaptations and modifications in that enactment by way of amendment as follows, namely,-

In the Schedule appended to the said Act, the following entries shall be added at the end, namely:-

The Nagpur Improvement Trust Act, 1936 (C.P and Berar Act No. XXXVI of 1936)

1.

In Section 46-A, for the words "State Government" the word "Commissioner" shall be substituted.

2.

In proviso (b) of sub-section (1) of section 52-B for the words "State Government" the word "Commissioner" shall be substituted.

G. N., R. D., No. RVA. 2557/85398-R dated 23rd July, 1958 (B. G. Part 4-B, page 781) - In exercise of the powers conferred by sub-section (4) of section 3 of the Bombay Commissioners of Divisions Act, 1957 (Bombay VIII of 1958), the Government of Bombay hereby confers and imposes on all Commissioners, the powers and duties under the enactment hereinafter specified and for that purpose adds to and specifies in the Schedule to the said Act the adaptations and modifications in that enactment by way of amendment as follows, namely,-

In the Schedule appended to the said Act, the following entry shall be added at the end, namely:-

The Cotton Ginning and Pressing Factories Act, 1925 (XII of 1925), in its application to the State of Bombay
In section 5B,

(a)

for the words "State Government" wherever they occur, the word "Commissioner" and

(b)

in sub-section (1), for the words "it may by an order" the words "he may by an order" shall be substituted.

G. N., R. D., No LAQ. 2558-V, dated 5th September, 1958 (B. G. Part 4-B, page 936) - In exercise of the powers conferred by sub-section (4) of section 3 of the Bombay Commissioners of Divisions Act, 1957 (Bombay VIII of 1958), the Government of Bombay hereby confers and imposes on the Commissioner, concerned the powers and duties under the enactments hereinafter specified and for that purposes adds to and specifies in the Schedule to the said Act the following adaptations and modifications in those enactments by way of amendment as follows, namely,-

In the Schedule appended to the said Act, the following entries shall be added at the end namely:-

The Land Acquisition Act, 1894 (I of 1894), in its application to the pre-Reorganisation State of Bombay excluding the transferred territories

1

In section 3-A ?

(i) after the words "State Government", where they occur for the first time, the words "or the Commissioner" shall be inserted.

(ii) after the words "by the State Government in this behalf" the words "or, as the case may be, any officer authorised by the Commissioner" shall be inserted.

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Translation